# Notification Waiver Determination

## URUS (CVC Capital Partners) – AgriWebb

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| **Acquisition** | Alta Genetics Australia Pty Ltd (**Alta Genetics**), an Australian subsidiary of the URUS Group which is indirectly controlled by funds advised or managed by affiliates of CVC Capital Partners plc (**CVC Capital Partners**), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in AgriWebb Pty Ltd (**AgriWebb**), as described in the transaction documents provided as part of the application (the **Acquisition**). |
| **Determination** | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified. |
| **Date of determination** | 27 May 2026 |

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| **Parties to the Acquisition** | The acquirer, Alta Genetics, is an Australian subsidiary of the URUS Group. The URUS Group is a global company active in the agricultural sector, specifically providing products and services in bovine genetics and reproductive technology. Another subsidiary of the URUS Group, Valley Agricultural Software, Inc. (**VAS**), supplies software and information solutions targeted to dairy herd management for intensive dairy operations.<br>The URUS Group, and by extension its subsidiaries, are indirectly controlled by funds advised or managed by affiliates of CVC Capital Partners (together, the **CVC Funds**), a public limited company incorporated in Jersey and listed in Amsterdam. The CVC Network is a global alternative investment manager focused on private equity, credit, infrastructure, and secondaries, and includes CVC Capital Partners, each of its subsidiaries, and the CVC Funds.<br>The target, AgriWebb, is an Australian provider of livestock and farming management software. AgriWebb's software management solutions are designed to assist farmers in managing their day-to-day operational business with farm record keeping, farm mapping, livestock management, pasture and grazing management, task and workflow management, and farm auditing and compliance.<br>The parties are both active in the supply of livestock management software in Australia. |
| **Explanation for determination** | In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). |

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| | Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:<br>a. there is limited overlap between the product offerings of the parties, as their respective offerings primarily serve different use cases<br>b. there are alternative providers of the types of livestock management software offered by the parties, both globally and in Australia<br>c. VAS has a small Australian presence, and any increment in share of supply arising from the Acquisition is estimated to be small.<br>The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.<br>While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.<br>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.<br>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines. |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**